

HOUSE BILL 1430

By Powers

AN ACT to amend Chapter 87 of the Private Acts of 1973; as amended by Chapter 31 of the Private Acts of 2005; and any other acts amendatory thereto, relative to Union County.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 87 of the Private Acts of 1973, as amended by Chapter 31 of the Private Acts of 2005, and any other acts amendatory thereto, is amended in Chapter 1, Section 3 by deleting the language:

**SECTION 3.** The County Assessor of Properties shall be entitled to a fee for the issuance of each building permit. The amount of the fee shall be set by the county legislative body for Union County, and shall not exceed the following:

- (1) The sum of two hundred twenty-five dollars (\$225) for residential construction, including homes and the setup of new and used mobile homes; and
- (2) The sum of four hundred fifty dollars (\$450) for commercial construction which shall include a unit or development of more than two (2) residential units.

and substituting instead

**SECTION 3.** The County Assessor of Properties shall be entitled to a fee for the issuance of each building permit. The amount of the fee shall be set by the county legislative body for Union County, and shall be as follows:

- (1) The fee for a building permit shall be the sum of fifty cents (\$0.50) per square foot for all buildings constructed, erected, or reconstructed;
- (2) A building permit shall not be required for a shed or barn, and no fee shall be collected; and

(3) Any provision regarding building permit fees in conflict with the fees above stated are hereby repealed.

SECTION 2. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Union County. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 3. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 2.